White-Label Services Agreement

This White-Label Agreement (the "**Agreement**") is made and entered into on [xx xx 2025] between:

- Momentum Gaming Solutions Ltd, a company organised and existing under the laws of the Autonomous Island of Anjouan, Union of Comoros, with its registered office and principal place of business at Hamchacku, Mutsamudu, Autonomous Islands of Anjouan, Union of Comoros (hereinafter referred to as "Operator"), and
- **_____,** a company organized under the laws of the _____, with its principal place of business at **_____** (hereinafter the "**Partner**").

The Operator and Partner may be referred to collectively as the "**Parties**" and individually as a "**Party**".)

Recitals

A. Software and Games: The Operator is the owner of the operational infrastructure and the licensed user of the software, including the Platform and Games (the **"Software"**), which are operated and made available in accordance with the applicable gaming license held by the Operator. All rights not expressly granted under this Agreement are reserved by the Operator .

B. Licensing and Regulatory Authority: The Operator holds a valid gambling license authorizing B2B, B2C and white-labeling operations No. ALSI-152312014-FI3, issued by the **licensing authority of the Autonomous Island of Anjouan, Union of Comoros** under the Betting and Gaming Act of 2005 of Anjouan. This license (the "**Anjouan License**") permits the Operator to operate online gambling services internationally under the sovereign jurisdiction of the Anjouan, Islands of Comoros. The Partner desires to operate its iGaming brand under the Operator's License (i.e., as a **white-label** operating under the Operator's master license) rather than obtaining its own gambling license.

C. Purpose of Agreement: The Partner Client seeks to launch and promote its brand (the **"Brand"**) and therefore wishes to access and use the Operator's Software, Games and related operational services (the **"Operational Structure"**), which are provided and operated by Operator under its valid gaming license, subject to the terms of this Agreement. The Operator has agreed to provide the Partner with the Platform and comprehensive operational support services (described herein) to enable the Partner's Brand to be launched and operated in compliance with all applicable laws and license conditions. The Operator assumes the responsibility for giving the access to the Software and Operational Infrastructure to the Partner defined in Annex A, as well as any other items or Services agreed to in this Agreement.

Conversely, the Partner agrees to share revenue generated by the use of the Software and Operational Infrastructure, as well as for any other items or Services agreed hereto, with the Operator.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and other good and valuable consideration, the Parties hereby agree as follows:

1. Definitions

1.1. "Platform" means the online gambling platform, including all software, websites, systems, and services provided to operate the Brand's online casino/gambling site. This includes the front-end website (branded as the Partner's site), back-end management systems, game content, payment processing systems, and all associated technology developed, maintained, or otherwise made available by the Operator, whether directly or via third-party providers, including all relevant

software and hardware components, data repositories, APIs, user-facing interfaces, administrative and back-office tools, reporting and monitoring systems, and any related infrastructure, features, and content, together with all updates, upgrades, improvements, or derivative works, as necessary to support the provision, administration, and delivery of interactive gaming services in accordance with this Agreement.

1.2. "Brand" means the online iGaming website and service operated under the Partner's chosen brand name, logo, and design. Domain(s) shall be approved by the Operator and specified in a respective Annex B.

1.3. "License" means the gambling license No. ALSI-152312014-FI3 issued to the Operator by the licensing authority of the Autonomous Island of Anjouan, Union of Comoros, under which the Platform and the Partner's Brand will operate as a licensed iGaming service **(B2B, B2C and whitelabeling)**. The License permits the Operator and its white-label clients to conduct real-money online gambling activities including casino games, sports betting, and lotteries for players in permitted jurisdictions.

1.4. "Players" (or "**End Users**") means the individual customers who register on and use the Brand's online gambling site. Players are considered customers of the Operator for legal and regulatory purposes, though they will interact with the Brand as a consumer-facing identity.

1.5. "KYC" means Know-Your-Customer processes for identity verification of Players, as required by anti-money laundering laws and gaming regulations.

1.6. "AML" means anti-money laundering laws, regulations and requirements applicable to the operations under this Agreement, including but not limited to End Users due diligence, transaction monitoring, record-keeping and reporting of suspicious activities.

1.7. "Services" means all the support and operational services provided by the Operator under this Agreement, as detailed in Section 3, including but not limited to player account management, KYC verification, payment processing, fraud prevention, customer support, marketing support, and risk management.

1.8. "Software" means the proprietary and/or licensed software solutions made available by the Operator, whether directly or through third-party licensors, including the gaming platform, games, applications, source and object code (to the extent applicable), APIs, databases, system architecture, user interfaces, back-office and administrative tools, reporting and monitoring systems, and all related documentation, functionality, and content, together with any updates, upgrades, patches, modifications, enhancements, or derivative works thereof, as may be provided from time to time under this Agreement.

1.9. "**Dashboard**" means Brand Management Dashboard.

1.10. "Operational infrastructure" shall have meaning given to it in clause 3 of the Agreement.

1.11. "Launch Date" shall be deemed to have taken place when the Brand becomes available for public use (for both gameplay and transactions) on the Partner's Website, and the Partner has been informed thereof.

2. Scope of the Agreement

2.1. Operator Provision: The Operator shall provide the Partner with access to the **Platform** and associated tools to create and operate the Partner's Brand as a fully functional online gambling website. This includes a license to use Software and systems for the term of this Agreement, solely for the Brand configuration, marketing, and operational support. The Partner shall use the Software

only for the duration of this Agreement and strictly in accordance with terms of this Agreement, and solely in connection with the Brand as approved by the Operator. .

2.2. White-Label Operation under Operator License: The Brand will operate under the Operator's Anjouan License as a white-label iGaming site. This means the gambling services will be legally offered under the Operator's license and regulatory oversight, while being branded and marketed as the Partner's own product are provided, controlled, and legally offered by the Operator. The Operator retains ultimate responsibility for compliance and operation of the gambling services (as detailed in Section 5), and the Partner shall act in accordance with Operator's license conditions at all times. The Partner shall not represent to any third party that it holds a separate gambling license for the Brand, and acknowledges that all gaming transactions with Players are offered under Operator's licensure and control.

2.3. Territory and Audience: The Brand is intended for operation in **permitted jurisdictions worldwide** (i.e., jurisdictions where online gambling is legal and not restricted by the Anjouan License or by the Operator's policies). **Prohibited Jurisdictions** are listed in **Schedule 2**, and the Partner's Brand shall not market to, or accept Players from those territories (see Section 5.5). The Operator may update the list of permitted or prohibited territories from time to time to ensure compliance with law and licensing requirements, upon written notice to the Partner. Any such update shall take effect immediately upon written notice to the Partner, and shall not give rise to any liability, compensation, or right of termination on the part of the Partner.

2.4. Exclusivity: Unless otherwise stated, this Agreement is non-exclusive. The Partner is free to conduct other business or operate other brands outside the scope of this Agreement (provided those do not use the Operator license without a separate agreement). The Operator remains free to provide its Platform, Software and Services to other clients and launch other white-label brands for third parties globally, including potential competitors of the Partner. All player data, including personal and transactional data, shall remain under the sole ownership and control of the Operator. The Partner may use such data only as expressly authorised in writing for the purposes of marketing the Operator's services and shall not use, share, or exploit the data to market or promote any competing websites or services.

2.5. No Partnership or Joint Venture: The Parties agree that their relationship is one of **independent contractor and client** for provision of services. Nothing in this Agreement shall be deemed to create a partnership, joint venture, or employment relationship between the Operator and Partner. The Partner's Brand will be presented as an independent brand, but it will state that gambling services are provided by the Operator as required by regulatory disclosures.

3. Operator Obligations and Responsibilities

The Operator shall provide the following **Services** and Operational infrastructure to support the Partner's Brand. These services are inclusive of the Service Level Agreement set out in Schedule 1 and are designed to cover all major operational needs of the Brand:

3.1 Player Onboarding and KYC Verification: The Operator will manage the Player registration process on the Brand's website, including collection of user information and verification of Players' identity, age, and eligibility. The Operator's risk management team will perform KYC checks and document verification to ensure each Player meets regulatory requirements (age over the legal minimum, identity verification, and residence in a permitted jurisdiction). This includes verification of identity documents, proof of address, and payment method ownership as needed. The Operator shall ensure compliance with all applicable **AML/KYC laws** in onboarding Players (e.g., checking against sanction lists, PEP screening, and source of funds inquiries for high-risk players).

3.2 Anti-Fraud Monitoring: The Operator's dedicated risk management team will monitor all gameplay and financial transactions on behalf of the Brand. This service is aimed at detecting and preventing fraudulent activities, such as payment fraud, money laundering, collusion between players, cheating, or any irregular betting patterns. Real-time systems will flag suspicious behavior (e.g. rapid multiple deposits and withdrawals, use of stolen credit cards, etc.), and the Operator may suspend or investigate player accounts as needed. The Partner will be informed of any major incidents, but the Operator will handle first-line fraud prevention measures, including reporting suspicious transactions to authorities when required under AML laws. The Operator shall not be liable for any misuse of the system or for any failure of the system to detect or prevent player activity that utilises methods, techniques, or circumvention measures that are unknown to, or beyond the reasonable control of the Operator.

3.3 Anti-Bonus Abuse and Fair Play Controls: The Operator shall implement measures to identify and restrict **bonus abuse** by Players. This includes detecting patterns like multiple account creation to redeem signup bonuses, coordinated play to exploit promotions, or other activities that violate the bonus terms. The Platform can enforce bonus rules (e.g., wagering requirements, eligibility) automatically and flag or block players deemed to be abusing bonuses or promotions. If the Partner offers promotional bonuses or free plays, these promotions must be configured through the Platform's tools, which have built-in controls to prevent abuse. The Operator's team will advise on best practices for bonus structuring and will take action (such as exclusion from bonuses or account closure) against players engaged in bonus abuse, in line with the Brand's terms and conditions.

3.4 Payment Processing and Cryptocurrency Integration: The Operator shall provide and control the payment processing infrastructure for the Brand and shall handle all player deposits and withdrawals using the payment methods supported by the Operator from time to time, including, without limitation, credit and debit cards, e-wallets, bank transfers, and cryptocurrencies.

As the licensed operator, the Operator shall solely hold, receive, and process all player funds, either directly or through its duly authorized payment service providers or agents, on behalf of the Brand. The Partner shall not at any time hold, receive, process, or control player funds, nor represent otherwise to any third party.

The Operator may, at its sole discretion, add, replace, suspend, or discontinue any payment method, payment service provider, or cryptocurrency integration from time to time. Any such change shall not give rise to any liability, compensation, or claim by the Partner, provided that the Operator continues to offer commercially reasonable payment options where practicable.

3.5 Gaming Content and Technical Operations: The Operator shall provide a full suite of **casino games, betting products, and related software** as part of the service. This includes integrating games from various third-party game providers (slots, table games, live dealer, sports betting odds, etc.) into the Brand's website. The Operator shall not be liable for any technical failures, disruptions, or deficiencies arising from third-party systems, software, or services beyond its reasonable control as well as the Operator does not warrant or assume responsibility for the development, content, or intrinsic performance of third-party games. The Operator may, at its sole discretion, add, replace, suspend, or discontinue any game providers from time to time. Any such change shall not give rise to any liability, compensation, or claim by the Partner, provided that the Operator continues to offer commercially reasonable payment options where practicable.

3.6 Marketing Campaign Automation and CRM: The Operator has integrated a **marketing and customer relationship management (CRM) tool** to engage and retain Players on the Brand. This includes an automated campaign management system for email/SMS/push marketing, player segmentation, and behavior-triggered promotions, including targeted offers based on player activity. Additionally, the Operator's CRM team will provide advisory and technical assistance in

running retention campaigns These retention and CRM activities will be in the name of the Brand and aim to maximize player lifetime value. **Important:** The scope of the Operator's marketing services is limited to retention and CRM (the **B2C marketing operations**). **User acquisition** marketing, including paid advertising, affiliation and influencer campaigns etc., remain the responsibility of the Partner (see Partner obligations in Section 4.2), though the Operator can offer guidance or optional services in that area if separately agreed. The Partner shall ensure that all marketing communications to Players as well as advertising materials used on the website and for the promotion of the Brand will comply with applicable advertising standards and include responsible gambling messaging as required by law.

3.7 24/7 Customer Support Services: The Operator will provide continuous, round-the-clock customer support services for all Players of the Brand. Support shall be available via multiple communication channels, including but not limited to live chat on the Brand's website, email, and ticketing systems.

Languages and Time Zones. Support will be delivered in the languages and regional time zones agreed between the Parties.

Scope of Support. The Operator's support team, acting as the Brand's agents, will manage enquiries relating to:

- Player account access, verification, and KYC issues;
- Gameplay questions, technical troubleshooting, and software incidents;
- Deposits, withdrawals, and payment method inquiries;
- Player complaints and disputes, including regulatory complaints where applicable.

Service Standards.

- Live chat shall be targeted for first response within sixty (60) seconds, and email responses within twenty-four (24) hours.
- Support performance will be monitored through Key Performance Indicators (KPIs), including median response time, resolution time, and Customer Satisfaction Score (CSAT).
- Escalation procedures will be documented and enforced, with unresolved or complex cases escalated to the Operator's duty manager, compliance officer, or technical specialists as appropriate.

Training and Compliance.

- All support staff shall receive training in the Brand's offerings, policies, and procedures, and shall be subject to ongoing refresher training.
- Agents shall be trained in anti-money laundering (AML) and Know-Your-Customer (KYC) triage, including identifying suspicious behavior and escalating such cases to Swift's compliance team.
- In accordance with Section 5.4 (Responsible Gambling), support agents shall be trained to recognize indicators of problem gambling and shall be empowered to guide Players toward responsible gaming measures, including deposit or loss limits, cool-off periods, and self-exclusion.

Partner Oversight.

- The Partner may request access to support transcripts, ticket logs, or summary reports (including performance metrics and complaint trends) at reasonable intervals.

Integration with Operations. Customer support will operate in coordination with the Operator's AML/KYC, Responsible Gaming, CRM, and technical operations functions to ensure consistent compliance, security, and player protection. The Partner may be given access to support transcripts or summary reports upon request. All customer support will be provided in line with **Responsible Gaming** practices (Section 5.4), meaning staff are trained to identify problem gambling indicators and can guide players to self-exclusion or limits when appropriate.

3.8 Brand Insurance and Risk Management: The Operator provides standard risk management measures as part of its platform operations, aiming to ensure the stability and continuity of the Partner's Brand. However, for the avoidance of doubt, the Partner assumes full and sole responsibility for all financial, operational, and regulatory risks arising from its Brand and Player activity.

By default:

- **Chargebacks, refunds, and fraud-related losses** (including friendly fraud, payment reversals, or undetected fraudulent activity) shall be borne solely by the Partner and may be **deducted from the Partner's Net Gaming Revenue (NGR)**. While the Operator implements anti-fraud protocols and monitors suspicious behavior, the Operator does not guarantee prevention or coverage of any financial losses resulting from fraud/undetected fraud.
- **Large Win Payouts & Jackpot Risk**: The Operator does not guarantee liquidity coverage for unusually large player wins unless the Partner subscribes to a separate insurance service.
- **Regulatory fines, payment service provider fines, fines from International Payment Systems, penalties, or compliance-related costs** or any other fines related to the operation of the Brand resulting from the Partner's actions or omissions (or inaction) are the Partner's sole responsibility. The Operator maintains internal compliance systems and provides operational oversight within its scope but does not assume liability or indemnify the Partner unless separately contracted in writing.

3.9 Additional features/custom development: Any additional requirements to improve, change, update the existing Software or Operational infrastructure shall be scoped and defined based on time and material approach. The Partner will be provided with an estimate of the time required and the cost for each task separately. All intellectual property, improvements, updates, or modifications developed by the Operator in connection with such custom development shall remain the sole property of the Operator. The Operator may, at its sole discretion, reuse, license, or sell such improvements, updates, or modifications to other partners or third parties, without any obligation, compensation, or claim from the Partner.

3.10 Affiliate platform: The Operator offers an integration with an affiliate platform by default. The contract between the affiliate platform and the Partner is to be signed by the Partner directly, and the Operator shall have no responsibility or liability for the performance, obligations, or disputes arising from such agreements. The Operator provides the integration solely as a technical facilitation, and the Partner remains fully responsible for managing, monitoring, and complying with all obligations under any affiliate agreements.

4. Partner's Obligations and Responsibilities

While the Operator will handle most Operational Infrastructure as described above, the Partner agrees to fulfill the following obligations under this Agreement, to ensure the success and compliance of the Brand:

Unauthorized Use: The Partner shall: (a) notify the Operator immediately of any unauthorized use of any password or user id or any other known or suspected breach of security, (b) report to the Operator immediately and use reasonable efforts to stop any unauthorized use of the Services that is known or suspected by the Partner or any user, (c) not provide false identity information to gain access to or use the Service, and ensure that all passwords and access credentials are secure and used only by authorized personnel.

The Partner acknowledges that access to the Services is strictly limited to authorized personnel and agrees to maintain adequate internal controls to prevent unauthorized access or misuse. The Operator shall not be liable for any losses, damages, or breaches resulting from the Partner's failure to comply with these obligations.

4.1 Brand Design and Materials: The Partner shall timely provide the Operator with all necessary branding materials and information for the launch of the Brand utilising the guidelines provided. This includes the Brand name, logos, color schemes, and any specific design assets or content the Partner wishes to use (such as images or text for the website). The Partner warrants that any materials or content it provides do not infringe any third-party intellectual property rights and comply with decency and legal standards. The Partner will cooperate with Operator's design team to finalize the look-and-feel of the website (including approving templates or mockups). Any delay by the Partner in providing branding assets or feedback may delay the launch schedule.

4.2 Marketing and Player Acquisition: The Partner is primarily responsible for **marketing the Brand to attract new Players** (user acquisition). This includes creating and executing marketing strategies such as online advertising campaigns, SEO, social media marketing, affiliate programs, or other promotions to drive traffic to the Brand's website. The Partner shall bear all costs of such marketing efforts unless otherwise agreed in writing (for example, if the Operator participates in or manages certain marketing campaigns, cost-sharing must be agreed per Section 3.6 or a separate schedule). In conducting marketing, the Partner must comply with all applicable advertising and consumer protection laws, and with the Operator's **guidelines** as well as shall be responsible for its advertisers. Specifically, the Partner shall **not**: (i) advertising to persons under legal gambling age or in prohibited jurisdictions (Section 5.5); (ii) make false or misleading claims in marketing; (iii) offer any bonuses or promotions to players or influencers, that have not been approved by the Operator, or that violate the agreed bonus parameters (to ensure consistency with the Platform's configured promotions and to avoid inducing bonus abuse beyond control). The Partners's marketing materials should include required disclaimers (e.g., "18+ only", "**Play Responsibly**" messages, license information if required by certain markets). The Operator reserves the right to review and request changes to the Partner's marketing communications to ensure regulatory compliance and protection of the license. The Partner shall promptly implement any requested changes.

The Partner bears full responsibility for any fines, penalties, or other regulatory costs arising from marketing communications that do not comply with applicable laws, regulations, or license conditions, including any failure to implement changes requested by the Operator.

4.3 Compliance Cooperation: The Partner shall **cooperate fully with the Operator** in all compliance matters. This includes providing any information (within one (1) business day) about the Partner's business or personnel that may be required for licensing or regulatory purposes (for example, if the licensing authority of the Autonomous Island of Anjouan, Union of Comoros or any authority requires due diligence on the Partner's directors or shareholders as part of the white-label arrangement). The Partner must also adhere to any compliance program the Operator implements. If the Partner becomes aware of any legal issue or incident that could affect the Brand or breach

regulations (e.g., a media report of illegal targeting, or a known high-risk player that the Partner has information about), the Partner should inform the Operator immediately. The Partner will not do or authorize any act that puts the Operator's License at risk; any direction from the Operator's compliance team regarding ceasing an activity or modifying operations to stay compliant must be followed by the Partner promptly. The Operator reserves the right to suspend or restrict access to the Platform or Services in the event of actual non-compliance by the Partner or if the Operator reasonably suspects that any such non-compliance or breach may occur.

4.4 Customer Interaction Restrictions: The Partner understands that day-to-day player account management (registration, deposits, withdrawals, support) is handled by the Operator. The Partner **shall not** directly handle player funds or personal data outside of the Platform, nor interact with Players in any way that violates data protection or undermines the established processes. All player data provided to the Partner via reporting dashboards or CRM tools shall be kept confidential (per Section 9) and used only for purposes permitted under this Agreement (such as analyzing marketing effectiveness). The Partner may not transfer or sell player data to any third party.

4.5 Fees and Payments to the Operator: The Partner shall pay the Operator the fees for the Services as set forth in **Schedule 3**. Payment terms (e.g., setup fees, monthly platform fees, revenue share percentages on Gross Gaming Revenue, and payment schedule) are detailed in Schedule 3. The Partner agrees to the revenue share model wherein the Operator will periodically deduct its Fees or share from the Brand's gaming revenues before remitting the remainder to the Partner, if so structured, in accordance with Schedule 3. The Partner is responsible for any applicable taxes on its share of revenues, and if any withholding taxes apply, those will be handled as per Schedule 3. Late payment by the Partner of any invoices (if, for example, fixed fees are invoiced) may incur interest as specified in Schedule 3 or allowed by law. The Operator reserves the right to suspend Services (including pausing the Brand's operations) in case of significant payment default by the Partner, after giving notice and opportunity to cure as specified in Section 7 (Termination). The Operator reserves the right to adjust or change any fees payable under this Agreement at any time, including but not limited to changes resulting from third-party costs, regulatory changes, market conditions, or other circumstances affecting the Operator's provision of Services. The Partner shall be responsible for such adjustments, and the Operator shall provide written notice of any fee changes as soon as reasonably practicable.

4.6 Representations and Warranties of Partner: The Partner represents that it has the legal capacity to enter this Agreement. The Partner warrants that all information it has provided to the Operator regarding its ownership, corporate structure, and business plans is accurate and that it will inform the Operator within 5 calendar days of any material changes (e.g., change in ownership or control). The Partner also represents that none of its directors, officers, or significant owners have been convicted of financial or any other crimes or are on any sanctions' or PEP lists, and that engaging with the Partner will not cause the Operator to violate any applicable sanctions or laws (this is crucial for the Operator's own license compliance).Any breach of this representation shall entitle the Operator to recover a contractual penalty based on the averaged sum value of the monthly invoiced amount up to and including the previous 12 monthly period, multiplied by six. In the event where the monthly period is less than 12 months, a minimum penalty of $250,000 will be required or where greater, the average will be taken from the total monthly invoices issued and multiplied by half of the total number of months. This is in addition to any other available remedies as well as pursuing any other remedies available at law or in equity, including immediate unilateral termination of this Agreement.

5. Licensing, Regulatory, and Compliance Terms

Given that the gambling services under this Agreement are highly regulated, the Parties agree to adhere to the following compliance terms, which are critical to maintaining the Anjouan License and operating legally and responsibly:

5.1 Use of License and Regulatory Approval: The Operator represents that it holds the Anjouan License in good standing and will maintain it throughout the term of this Agreement. All gaming activities offered under this Agreement will be covered by and conducted pursuant to the Operator's Anjouan License. The Partner acknowledges that the licensing authority of the Autonomous Island of Anjouan, Union of Comoros (AOFA) and applicable law may require certain approvals or notifications regarding the addition of the Partner's Brand under the Operator's license. The Operator will handle any such regulatory filings or approvals. The Partner agrees to provide any required information or documentation to support licensing requirements (for example, information needed for AOFA approval of the Partner's involvement, if required). If, during the term, additional licenses or certifications become necessary for certain markets (e.g., if the Brand wishes to target a jurisdiction that requires specific authorization), the Parties will discuss in good faith how to accommodate such requirements (which may include the Operator obtaining another license or the Partner obtaining a local license or avoiding that market). The Partner shall not purport to offer any games or services that fall outside the scope of the Operator's license. The Operator may from time to time update the operational policies to ensure compliance with Anjouan regulations or any other applicable law, and the Partner shall adhere to all such policies. The Parties agree that, in the event of a change, transfer, or re-issuance of the Operator's license, all rights and obligations under this Agreement shall remain in full force and effect. This shall not apply only in cases of the Operator's closure, insolvency, or bankruptcy, in which case the Agreement may be terminated in accordance with its terms.

5.2 Anti-Money Laundering (AML) and KYC Compliance: Both Parties commit to full compliance with applicable Anti-Money Laundering laws and regulations (including any Anjouan jurisdiction AML regulations, and international standards such as the Financial Action Task Force (FATF) recommendations). The Operator will establish and enforce AML policies and procedures for the Brand's operations. These policies will include thorough KYC due diligence on all Players, ongoing transaction monitoring, record-keeping of customer identification and transactions, and reporting of any suspicious activities to the appropriate authorities. The Operator's responsibilities (detailed in Section 3.1 and 3.2) include performing KYC checks upon withdrawal and ongoing screening (e.g., age and identity verification, source of funds checks for large transactions, PEP/sanctions screening). If the Partner receives any information or learns of any activity that could be relevant to AML (for instance, if an acquaintance of the Partner indicates they want to deposit unusually large funds), the Partner must inform the Operator. The Partner shall conduct appropriate know-your-customer (KYC) and due diligence checks on its clients, partners, and counterparties, as required by applicable law and regulatory standards as well as shall not knowingly do business with any person who is known to be engaged in money laundering, terrorist financing, or that appears on any sanctions, watch, or prohibited persons lists.. The Partner acknowledges that any breach of this obligation may expose the Operator to regulatory risk and therefore constitutes a material breach of this Agreement. The Operator will provide the Partner with a summary of its AML Policy, and the Partner agrees to review and acknowledge it. The Parties understand that AML compliance is a shared priority: the Operator will implement the program, and the Partner will support and not impede these efforts. The Partner agrees that the Operator may refuse or suspend any Player account or transaction that raises AML concerns, at the Operator's sole discretion, and the Partner shall not override or contest such decisions if they are made in good faith compliance efforts.

5.3 Data Protection and Privacy: The Parties shall comply with all applicable data protection and privacy laws in relation to personal data of Players and any personal data exchanged between the

Parties. This includes compliance with the EU General Data Protection Regulation (GDPR) (EU 2016/679) for any EU resident data, as well as any applicable data privacy laws in Anjouan, or other target markets. The Operator shall act as the **data controller** for Player personal data collected via the Brand's platform, given that the Operator is operating the gambling service and determining the purposes (account creation, fraud prevention, etc.) of such data processing. The Operator will ensure that Players are presented with a clear Privacy Policy (usually via the Brand's website) that informs them of how their data is used. The Operator will implement industry-standard data security measures to protect personal data (encryption, access controls, etc.). If either Party becomes aware of any data breach or security incident involving Player data, they shall promptly notify the other Party and cooperate in any notifications to regulators or affected individuals as required by law. The Partner shall not export or use any personal data of Players outside the Platform except as expressly allowed (for example, downloading marketing reports) and shall abide by the Operator's instructions regarding data handling. Both Parties will also ensure email and direct marketing communications to Players comply with applicable spam laws (e.g., CAN-SPAM Act, EU e-Privacy Directive) and that Players have consented where required. The obligations in this Section shall survive termination of the Agreement, with respect to any personal data retained.

5.4 Responsible Gambling: Both Parties are committed to promoting **Responsible Gambling** practices in the operation of the Brand. The Operator will implement features on the Platform to support responsible gaming, including: allowing Players to set deposit limits, loss limits, wager limits, cool-off periods, and self-exclusion; displaying responsible gaming messages and helpline links; and preventing underage gambling (via KYC age verification). The Operator's customer support (Section 3.7) will be trained to recognize signs of problem gambling behavior and to take appropriate action, such as suggesting limit-setting or self-exclusion if a Player exhibits addictive behavior. The Partner shall support these responsible gaming measures by not targeting vulnerable groups in its marketing and by adhering to any requests by the Operator to modify promotional strategies that might encourage excessive play. For example, if the Operator identifies a player with potential gambling issues, the Party will refrain from sending that player high-intensity marketing offers. The Brand's website will clearly display terms and information about responsible gambling (e.g., "Gamble Responsibly" notices, links to problem gambling support organizations, and the self-exclusion page). The Parties agree to comply with any responsible gambling codes of conduct in the relevant jurisdictions, and with any specific conditions of the Anjouan License related to player protection. If the Partner runs any social media or external advertising (including influencer campaigns), it should include responsible gambling disclaimers as appropriate. Regular reports on self-exclusions and limit usage can be provided to the Partner upon request, to maintain transparency on how the Brand upholds player welfare.

5.5 Prohibited Jurisdictions and Player Location: The Partner's Brand shall **not** be offered or marketed to persons in any **Prohibited Jurisdiction**. A Prohibited Jurisdiction is any country or territory where (i) online gambling is illegal or requires a license that the Parties do not possess, (ii) the Anjouan License or the Operator's policies explicitly forbid offering services to residents, or (iii) providing the services would violate trade sanctions or applicable law. The initial list of Prohibited Jurisdictions is attached in **Schedule 2** and may be amended by the Operator at any time at its own discretion if laws change or if required by the licensing authority of the Autonomous Island of Anjouan, Union of Comoros. The Operator will implement geo-blocking on the Platform to prevent access from known prohibited regions, and will filter player registrations by IP address and self-reported address. However, the Partner must also ensure its marketing does not target those regions (as noted in Section 4.2). If it is discovered that players from a prohibited jurisdiction have gained access or that the Partner inadvertently accepted players from a Prohibited Jurisdiction, the Operator will take corrective action (such as blocking those accounts and returning deposits, if required), and the Partner shall cooperate fully. Repeated or intentional breach of this section by

the Partner will be considered a material breach of the Agreement which may result in the imposition of a financial penalty and, at the Operator's discretion, the termination of the Brand and its takeover by the Operator, without prejudice to any other rights or remedies available under this Agreement or at law. Both Parties shall stay informed about international regulations to update the permitted markets for the Brand's operations. In addition, even within permitted jurisdictions, if certain states or provinces are restricted by local law, those will be considered prohibited.. The overarching principle is that the Brand will only be accessible where it is lawful under applicable law and the license.

5.6 Audit and Reporting: The Operator will maintain books and records of the Brand's operations as required by the licensing authority of the Autonomous Island of Anjouan, Union of Comoros and other applicable regulators (for example, records of wagers, payouts, KYC documents, AML reports, etc.). The Partner acknowledges that regulators or the Operator's internal auditors may conduct audits or inspections of the Brand's operations at any time. The Partner agrees to reasonably cooperate, which could include answering questions or providing documents related to marketing or its role, if needed. The Operator will provide the Partner with regular reports on the Brand's performance (financial and operational) as part of the Services (e.g., daily or weekly dashboard access, and monthly financial reports as described in Schedule 3 for revenue share calculations). If any audit or regulatory inquiry pertains to the Partner's conduct (e.g., advertising practices), the Partner must assist in resolving any issues. Both Parties shall promptly inform each other if they receive any inquiry, subpoena, or legal demand from a government authority relating to the Brand's operations. Any audit, inspection, inquiry, or investigation that arises from or relates to the Partner's actions or omissions (including, without limitation, marketing activities, affiliate conduct, KYC/AML failures, advertising practices, or regulatory breaches attributable to the Partner) shall be borne entirely by the Partner, including all reasonable costs, fees, penalties, professional fees, and expenses incurred by the Operator.

5.7 Gaming Content and Intellectual Property Compliance: The Brand's front-end content that the Partner provides (logos, text, etc.) must comply with intellectual property laws and not be misleading. The Operator reserves the right to take down or modify any Brand content on the site if required by law (for example, if a misuse of a trademark is claimed, or if an image violates copyright). The Parties will notify each other of any claim or threat of legal action regarding the content or operations, and will discuss a coordinated response.

5.8 Changes in Law or License Conditions: If any law or regulation (including the licensing authority of the Autonomous Island of Anjouan, Union of Comoros rules) changes in a way that materially affects the ability to offer the services or requires significant changes to the operations, the Parties will negotiate in good faith to modify the Agreement or the mode of operations to comply with the law. For instance, if a new data privacy law imposes additional requirements, the Parties will implement necessary measures; if a new tax is introduced on gaming revenues in certain markets, the financial terms may need adjustment to account for that (as further detailed in Schedule 3 regarding tax handling). If the Anjouan License for any reason is suspended, revoked, or not renewed, the Operator will inform the Partner immediately. In such an event, the Parties shall suspend real-money gaming operations of the Brand until the license is reinstated or an alternative solution (such as operating under a different license) is found. The Operator is not in breach of this Agreement for complying with new legal requirements or directives from regulators, even if such compliance requires immediate action such as shutting down access in a region or implementing new verification procedures; however, if such changes fundamentally alter the service scope, the Partner may have rights to terminate as described in Section 7.

6. Intellectual Property and Branding Rights

6.1 Platform IP: The Partner acknowledges that the Platform , including all software, source code, databases, algorithms, trade secrets, and business processes, as well as the look and feel of the provided website templates and the collective content of the gaming platform (except for the Partner's specific Brand elements), are the **intellectual property of the Operator.** All rights not expressly granted to the Partner are reserved by the Operator. During the term of this Agreement, the Operator grants the Partner a limited, non-exclusive, non-transferable license to use the Platform solely for the purposes of operating the Brand in accordance with this Agreement. The Partner shall not attempt to reverse engineer, decompile, or extract source code from the Platform, nor create derivative works based on the Platform, except to the extent expressly permitted by law or this Agreement. Any improvements or modifications to the Platform made during the course of this Agreement (for example, new features developed by the Operator which may be inspired by the Partner's feedback) shall be owned by the Operator.

6.2 Partner Brand IP: The Partner retains all right, title, and interest in and to its own trademarks, service marks, logos, brand names, and any unique content or intellectual property it provides to the Operator for inclusion in the Brand's website (for example, any original images, text, or designs the Partner supplies). The Partner grants the Operator a royalty-free, worldwide license to use, reproduce, and display the Partner's branding and content for the purpose of configuring and operating the Brand's online site and marketing materials, for the duration of the Agreement. The Operator will not use the Partner's trademarks or logos for any purpose outside the scope of this Agreement without the Partner's consent (except for references to the Brand in the Operator's own portfolio or marketing as an example of a powered brand, which shall be permissible).

6.3 Player Data and Database: All Player databases and all Player data shall be owned and controlled by the Operator for the duration of this Agreement. Upon termination or expiry of the Agreement, the User Data shall be returned to the Partner, and the Operator shall retain only such User Data as is strictly required by applicable law, which shall not be used, shared, or otherwise processed for any other purpose. Notwithstanding the foregoing, this clause shall not apply in the circumstances set out in section 5.5, in which case all User Data shall vest in the Operator as its sole and exclusive property on an indefinite and irrevocable basis, and the Partner hereby irrevocably waives any rights or claims thereto.

6.4 Domain Name: Upon registration, each domain name shall remain under the control of the Operator for the term of this Agreement. Upon termination or expiry of this Agreement, the domain shall be transferred to the Partner, subject to any outstanding obligations under this Agreement.

6.5 Content License from Third Parties: The Operator will secure licenses for all third-party content included in the Brand's offerings, such as game software from game studios, sports data feeds for betting, payment gateway software, etc. These are all covered under the Operator's agreements with those providers. The Partner agrees to abide by any end-user terms or content usage rules that apply (for example, not using game graphics outside the platform without permission). If the Partner wishes to add any third-party content of its own into the Platform (e.g., a specific game or a unique feature from a third-party vendor), this will require the Operator's prior consent and will involve additional licensing costs and integration work (to be handled via an addendum or change request). The Partner acknowledges and agrees that, unless expressly agreed otherwise in writing, any such third-party content, integrations, or features approved for use may be made available by the Operator to other partners or clients of the Operator on a non-exclusive basis, and the Partner shall have no exclusive rights or claims thereto.

6.6 No Use of Each Other's Marks beyond Agreement: Except as set out above, neither Party shall use the name, logo, trademarks, or other indicia of the other Party in any advertisement, press release, or promotional material without prior written consent. The Brand's marketing will primarily

feature the Brand's own identity, and if any reference to the Operator is needed (for instance, on a footer for license information), the Parties will agree on how such reference is displayed to satisfy regulatory transparency without overshadowing the Brand. Any use of the Operator's trademarks or branding by the Partner shall be subject to the Operator's prior written approval, including approval of the form, placement, context, and duration of such use. The Brand's marketing materials shall primarily feature the Brand's own identity.

6.7 Intellectual Property Indemnification: Each Party agrees to indemnify and hold the other harmless from any third-party claims arising from infringement of intellectual property rights caused by the indemnifying Party. For example, the Operator will defend the Partner against any claim that the Platform provided infringes a third party's patent or copyright, and if the Platform or any component is found to infringe, the Operator will, at its cost, procure the right for continued use or replace/modify the infringing part to be non-infringing. Conversely, the Partner will indemnify the Operator against any claim that the Partner's branding or provided materials infringe a third party's rights. The indemnified Party must promptly notify the other of any such IP claim and allow the indemnifying Party to control the defense and settlement (with reasonable consultation with the indemnified Party). This Section states the Parties' exclusive remedies for third-party IP infringement claims.

7. Term and Termination

7.1 Term of Agreement: This Agreement shall commence on the Effective Date and, unless terminated earlier in accordance with its terms, shall remain in effect for an initial term of **Three (3) years** from the Launch Date of the Brand ("Initial Term"). After the Initial Term, this Agreement will automatically renew for successive **one (1) year** periods (each a "Renewal Term") unless either Party provides written notice of non-renewal at least **90 days** prior to the end of the Initial Term or any Renewal Term.

7.2 Termination for Convenience: Either Party may terminate this Agreement without cause, by providing not less than ninety (90) days' prior written notice via email to the other Party, provided that all outstanding obligations under this Agreement have been duly fulfilled as of the effective termination date.

7.3 Termination for Cause: Either Party may terminate the Agreement immediately (or as of a date specified in the termination notice) if the other Party commits a **material breach** of this Agreement that is either incapable of remedy or, if capable of remedy, is not cured within **30 days** after receiving written notice of the breach. A material breach by the Operator would include, for example, prolonged failure to provide the core Services (Section 3) such that the Brand is offline or non-compliant for an unreasonable time, or loss of the Operators Anjouan License due to a culpable act of the Operator. A material breach by the Partner would include, for example, the Partner operating the Brand in prohibited ways (targeting banned jurisdictions, unauthorized marketing practices), non-payment of fees as per Section 4.5 beyond cure period, or any action by the Partner that causes serious risk to the Operator's license (e.g., fraud or misrepresentation by the Partner). Termination for cause will be given in writing specifying the breach.

7.4 Immediate Termination in Special Cases: Notwithstanding Section 7.3, the Operator may immediately suspend the Brand's operations or terminate the Agreement with immediate effect by written notice if: (i) required by a regulator or law enforcement (for instance, if the licensing authority of the Autonomous Island of Anjouan, Union of Comoros orders the Brand to cease operations due to regulatory violations); (ii) the Operator discovers that the Partner, or any of its principals, has become subject to sanctions, convicted of a crime, or is engaged in activities that in the Operators reasonable opinion harm the Operator's reputation or the integrity of the Services; or (iii) the Partner is found to have knowingly accepted bets from jurisdictions blacklisted in Schedule 2

on a repeated basis. Similarly, the Partner may terminate immediately if the Operator is declared bankrupt or insolvent, or if the Services are unavailable or shut down due to regulatory action for a period exceeding 60 days.

7.5 Effects of Termination: Upon termination or expiration of this Agreement for any reason:

- The Operator will disable new player registrations and betting on the Brand by the effective termination date.
- The Operator will ensure that any **pending bets or games** that cannot be immediately settled are fairly resolved or refunded to players as appropriate.
- The Operator shall allow a reasonable period (e.g., 30-60 days post-termination) for existing Players to withdraw any remaining account balances (net of any funds needed to cover chargebacks or disputes).
- The Operator will handle communications to Players about the site shutting down.The Partner must immediately cease all use of the Services and refrain from representing itself as the Operator's partner or a licensed gambling operator under the Operator's license. The Partner's rights to use the Operator's intellectual property (including software and any non-public materials) are revoked, and the Partner shall return or certify destruction of any confidential materials of the Operator in its possession.
- The Operator will provide final accounting to the Partner of any revenues due up to termination. If a revenue share model applies, the Operator will pay the Partner its share of Net Gaming Revenue up to the termination date (minus any monies reasonably reserved for chargebacks, player disputes, or regulatory fines that surface post-termination). If the Partner owes any outstanding fees or minimum guarantees to the Operator, those will become immediately due and payable.
- If the Agreement is terminated by the Partner for the Operator's breach or by non-renewal on expiry, the Partner may request assistance in migrating the Brand to another platform or obtaining its own license. The Operator will reasonably cooperate with migration efforts (e.g., data transfer) provided the Partner has paid all amounts due and such migration is compliant with law (subject to any data protection or contractual constraints).
- Clauses that by their nature are intended to survive termination (such as indemnities, confidentiality, data protection obligations, non-solicitation, governing law, etc.) shall survive. Particularly, the Operator will continue to protect Player data and fulfill any regulatory duties that extend beyond termination (like maintaining records for a statutory period).
- The Operator shall transfer the domain and all User Data to the Partner and shall permanently delete any copies in its possession or control, unless retention of such User Data is strictly required by applicable law, subject always to section 5.3.

7.6 No Liability for Lawful Termination: Neither Party shall be liable to the other for damages solely by reason of terminating this Agreement in accordance with its terms (without prejudice to any claim for breach that prompted a for-cause termination). However, termination shall not affect any claim either Party may have for antecedent breaches. The Parties may agree in writing on post-termination arrangements to wind down operations smoothly in a way that minimizes inconvenience to Players and avoids regulatory issues.

8. Confidentiality

8.1 Definition of Confidential Information: For purposes of this Agreement, "Confidential Information" means any non-public or proprietary information of a Party (the "Disclosing Party") that is disclosed to the other Party (the "Receiving Party") in connection with this Agreement, whether directly or indirectly, in writing, orally, by inspection of tangible objects, or via any other way. Confidential Information includes, without limitation: the terms of this Agreement, business plans, marketing and financial information, customer and Player data, technical information about the Platform, software source code or object code, algorithms, trade secrets, know-how, and any reports or data provided under this Agreement. For the Operator, Confidential Information includes the architecture and analytics of the Platform, the Operator's pricing, and documentation. For the Partner, Confidential Information includes any pre-launch business plans, the Partner's marketing strategies, etc. Information shall **not** be considered Confidential Information if the Receiving Party can prove that it: (a) is or becomes publicly available through no breach of this section, (b) was already known to the Receiving Party without confidentiality obligations prior to disclosure by the Disclosing Party, (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's confidential info, or (d) is received from a third party who did not violate a confidentiality obligation.

8.2 Confidentiality Obligations: The Receiving Party shall use the Confidential Information of the Disclosing Party **only** for the purpose of fulfilling its obligations and exercising its rights under this Agreement, and not for any other purpose. The Receiving Party shall not disclose Confidential Information to any third party, except to its and its affiliates' employees, officers, agents, consultants, or advisors who **need to know** such information for the purposes of this Agreement and who are bound by confidentiality obligations at least as strict as those herein. The Receiving Party shall protect the Disclosing Party's Confidential Information using the same degree of care as it uses to protect its own confidential info of a similar nature, but in no event less than a reasonable standard of care.

8.3 Permitted Disclosures: Notwithstanding the above, a Receiving Party may disclose Confidential Information if required to do so by law or valid legal order **(e.g., court order or regulator demand)**, provided that (to the extent legally permissible) the Receiving Party gives prompt written notice to the Disclosing Party to enable it to seek a protective order or otherwise contest the disclosure. If disclosure is required, the Receiving Party will disclose only the portion of information legally required and will use reasonable efforts to ensure the information is treated confidentially by the receiving authority. Additionally, the Operator may share necessary Partner or Agreement details with the licensing authority of the Autonomous Island of Anjouan, Union of Comoros or other relevant regulators as part of licensing compliance (those regulators typically having their own confidentiality rules).

8.4 Return or Destruction: Upon termination of this Agreement or upon written request of the Disclosing Party at any time, the Receiving Party shall promptly return or destroy (at the Disclosing Party's choice) all Confidential Information of the Disclosing Party in its possession or control, and certify in writing such destruction if requested. However, the Receiving Party may retain copies of Confidential Information that are stored in automatic archival backups made in the ordinary course, provided that such archived information remains subject to the confidentiality obligations hereunder for as long as it is retained.

8.5 Confidentiality of Agreement and Communications: The existence and terms of this Agreement are Confidential Information. The Parties agree not to issue any press release or public announcement regarding the relationship or this Agreement without the prior written consent of the other (except any announcement required by regulation – e.g., the Operator listing the Brand as part of its licensed operations). The Partner also agrees not to disclose or advertise the Operator's

fees or the structure of this white-label arrangement to other parties except its professional advisors under duty of confidentiality.

8.6 Remedy: Each Party acknowledges that unauthorized use or disclosure of the other's Confidential Information may cause irreparable harm for which damages alone may not be an adequate remedy. Therefore, in the event of any actual or threatened breach of this Section 8, the affected Disclosing Party shall be entitled to seek immediate injunctive relief (temporary or permanent) in addition to any other rights and remedies available at law or in equity.

8.7 Term: This Confidentiality clause shall enter into force on the Effective Date and shall remain in effect for a period of 5 years after termination of this Agreement. Notwithstanding the foregoing, the obligations of confidentiality, non-disclosure, and restricted use with respect to Confidential Information disclosed during the term of this Agreement shall survive the expiration or termination of this Agreement for a period of 5 years from the date of disclosure, or for so long as such information remains confidential under applicable law, whichever is longer.

8.8 Non-Disparagement: During the term of this Agreement and **at all times thereafter**, the Partner shall refrain from making, publishing, or communicating, directly or indirectly, any statement, representation, or content - whether oral, written, electronic, or otherwise - that could reasonably be expected to **disparage, defame, harm, or adversely affect** the reputation, goodwill, business relationships, or standing of the Operator, its affiliates, or their respective directors, officers, employees, contractors, or partners.

9. Indemnification

9.1 Partner Indemnity: The Partner shall indemnify, defend, and hold harmless the Operator and its affiliates, and their respective directors, officers, employees, and agents (the "Operator Indemnified Parties") from and against any and all third-party claims, liabilities, losses, damages, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) the Partner's breach of any representation, warranty, or obligation under this Agreement; (b) the Partner's marketing or promotional activities or content (for example, any claim that the Partner's advertising was defamatory, or violated a law or a third party's rights); (c) any content or materials provided by the Partner for the Brand (e.g., if any graphic or text infringes someone's IP or is illegal); or (d) any act or omission of the Partner or its personnel that causes a regulatory violation or fine (for instance, if the Partner ignores the Operator's instructions and targets a prohibited jurisdiction, leading to a penalty). The Partner shall not be responsible for indemnifying the Operator to the extent a claim arises from the Operator's own breach or negligence.

9.2 Operator Indemnity: The Operator shall indemnify, defend, and hold harmless the Partner and its affiliates, and their directors, officers, employees, and agents (the "Partner Indemnified Parties") from and against any and all third-party claims, liabilities, losses, damages, costs, and expenses (including reasonable legal fees) arising out of or related to: (a) the Operator's operation of the Platform in breach of applicable law or this Agreement (for example, a claim that the Operator failed to pay a player or a regulator's fine due to the Operator's compliance failure); (b) any claim that the Platform or the Services (as provided by the Operator) infringe the intellectual property rights of a third party (subject to Section 6.7); or (c) any data breach or security incident within the Operators control that compromises Player data due to the Operator's negligence. The Operator will not be liable for indemnifying the Partner for claims arising from the Partner's instructions or content (for instance, if a claim arises because the Partner insisted on using a certain marketing message, that falls under Partner's indemnity).

9.3 Indemnification Procedure: The Party seeking indemnification (the "Indemnified Party") shall: (i) promptly notify the other Party (the "Indemnifying Party") in writing of any claim or lawsuit for

which it seeks indemnification (delay in notice does not relieve obligation except to extent of prejudice); (ii) give the Indemnifying Party sole control of the defense and settlement of the claim, provided that any settlement that imposes non-monetary obligations or admission of fault on the Indemnified Party requires the Indemnified Party's consent (not to be unreasonably withheld); and (iii) provide at the Indemnifying Party's expense all reasonable cooperation in the defense. The Indemnified Party has the right to participate in the defense with its own counsel at its own expense.

9.4 Limitation: The indemnities herein are conditioned upon the Indemnified Party complying with the above procedure. They are the sole and exclusive remedies for the specific claims and losses they cover, but they do not preclude a Party from seeking other remedies for other breaches or issues outside those indemnified categories.

10. Limitation of Liability

11.1 Types of Damages: Except for the Parties' respective indemnification obligations (Section 9), or damages arising from a Party's willful misconduct or fraud, or the Partner's payment obligations, **neither Party shall be liable to the other for any indirect, consequential, special, punitive, or exemplary damages** in connection with this Agreement, whether in contract, tort or otherwise, even if such damages are foreseeable or if the liable Party has been advised of the possibility of such damages. "Indirect or consequential damages" include, but are not limited to, loss of profits, loss of goodwill, business interruption, or loss of data (subject to the specific obligations to protect data).

10.2 Liability Cap: To the fullest extent permitted by law, the Operator's **total cumulative liability** to the Partner arising from or related to this Agreement shall not exceed **the total amount of fees (or revenue share payments) paid or payable** to the Operator by the Partner in the **12 months** immediately preceding the incident giving rise to liability. If the event occurred before 12 months of the Agreement have elapsed, then the cap will be the amount paid or payable for that shorter period or $25,000 (whichever is greater). This liability cap applies in aggregate to all claims and causes of action.

10.3 Exceptions: Nothing in this Agreement shall limit or exclude liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; (c) any other liability that cannot be limited or excluded under applicable law. Additionally, the above limitations (Sections 10.1 and 10.2) do not limit the Partner's obligation to pay all due fees, nor do they limit either Party's liability for breach of confidentiality (Section 8) or infringement of the other's intellectual property, which shall each be subject to the liability cap **(if any)** stated above unless such breach was willful.

10.4 Acknowledgement: The Parties acknowledge that the allocations of risk and liability in this Section are an essential basis of the bargain between the Parties, and that without such limitations the fees or terms of this Agreement would be different. Each Party has had the opportunity to negotiate these provisions.

10.5 Force Majeure: Force Majeure or Force Majeure Event shall mean, with respect to the provision of the Services, any cause beyond the reasonable control of the affected Party, including any fire, explosion, flood, storm, earthquake, elements of nature or acts of God, outbreak, pandemic, acts of war, acts or attempted acts of terrorism, riots insurrection, civil disorders, or disturbances, rebellions or revolutions, strikes, lockouts, or labour difficulties (other than by staff of the affected Party), malicious acts of third parties (including theft or property damage), interruption of telecommunications service, electrical service, or breakdown of public infrastructure to the

extent it affects a Party, and with respect to the obligations of the Operator hereunder, in relation to pandemics, epidemics or outbreaks.

Except for Partner's payment obligations in this Agreement, neither Party shall be liable for any delay or failure to perform any material obligations under the Agreement, if the failure is due to an event of Force Majeure.

If a Force Majeure Event continues and so prevents the performance by the affected Party of its obligations hereunder for more than thirty (30) days or any thirty (30) days in aggregate in any continuous period in excess of ninety (90) days, either Party shall be entitled to terminate the Agreement immediately.

11. Governing Law and Dispute Resolution

11.1 Governing Law: This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the laws of the Republic of Cyprus. The Parties agree that the substantive laws of the Republic of Cyprus (excluding its conflict of laws principles) will govern all rights and obligations arising from this Agreement.

11.2 Jurisdiction: The Parties hereby irrevocably submit to the exclusive jurisdiction of the courts of **the Republic of Cyprus** for the settlement of any dispute or claim arising out of or in connection with this Agreement, its subject matter, or formation. Each Party waives any objection to the Republic of Cyprus courts on grounds of inconvenient forum or otherwise, subject to the provisions below.

11.3 Good Faith Negotiation: In the event of any dispute, controversy, or claim between the Parties arising out of or relating to this Agreement, the Parties shall first attempt in good faith to resolve the dispute informally. Either Party may send the other a written **Notice of Dispute**, and within **10 business days** of such notice, the Parties shall arrange to meet (or confer by telephone/videoconference) to discuss the dispute and seek an amicable resolution. If senior representatives of the Parties are available, they should be involved in these discussions. All negotiations pursuant to this clause are confidential and shall be treated as compromise and settlement discussions.

11.4 Mediation (Optional): If the dispute is not resolved within **30 days** after the Notice of Dispute, the Parties may mutually agree to attempt to resolve the dispute by mediation in the Republic of Cyprus, using a neutral mediator from a reputable mediation center. If they agree, they shall share the costs of mediation equally. If mediation is not mutually agreed or fails to resolve the dispute within an agreed timeframe (e.g., 60 days from starting mediation), either Party may proceed to court (or arbitration, if Section 11.5 applies).

11.5 Arbitration: Any dispute, controversy, or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity, interpretation, performance, breach, or termination, which cannot be settled amicably in accordance with this Agreement, shall be finally resolved by binding arbitration. The arbitration shall be administered by the Cyprus Eurasia Dispute Resolution and Arbitration Centre (CEDRAC) in accordance with its arbitration rules in force at the time of commencement of the arbitration. The tribunal shall consist of one (1) arbitrator, who shall be fluent in English and have experience in commercial contracts. The seat (legal place) of arbitration shall be the Republic of Cyprus. The arbitration proceedings shall be conducted in English. The arbitral award shall be final and binding upon the Parties, and judgment

upon the award may be entered and enforced in any court of competent jurisdiction. The Parties agree that the arbitration, all related proceedings, submissions, evidence, and disclosures shall be confidential, except to the extent disclosure is required for enforcement of the award or is otherwise required by applicable law or regulation.

11.6 Injunctive Relief: Notwithstanding the negotiation and dispute resolution procedures above, either Party may seek interim or preliminary injunctive relief or other equitable relief at any time in any competent court (and such action will not be deemed a waiver of the obligation to resolve disputes in the agreed manner) if necessary to prevent irreparable harm, such as breach of confidentiality or intellectual property misuse.

11.7 Language: This Agreement is drafted in the English language which shall be the governing language for dispute resolution. If the Agreement is translated into another language, the English version shall prevail to the extent of any inconsistency.

12. Miscellaneous Provisions

12.1 Entire Agreement: This Agreement, including its Schedules and any appendices referenced herein, constitutes the entire understanding and agreement between the Operator and the Partner with respect to the subject matter hereof, and supersedes all prior or contemporaneous oral or written agreements, representations, understandings, or communications between the Parties. Each Party acknowledges that it is entering into this Agreement based only on the representations, warranties, and promises expressly set forth herein, and not on any statements or promises not contained in this Agreement.

12.2 Amendments: Any amendment or modification to this Agreement must be in writing and signed by authorized representatives of both Parties. Email or click-through changes are not sufficient unless there is a digital signature process explicitly agreed to for contract amendments. Minor updates to Schedules (e.g., updating the prohibited jurisdictions list in Schedule 2, or adding a new payment method in the technical scope) may be done by the Operator providing notice to the Partner, and the Partner not objecting within a reasonable time (e.g., 10 business days); however, any material change to the scope of services, fees, or legal terms requires a formal signed amendment.

12.3 Assignment: The Partner may not assign or transfer any of its rights or obligations under this Agreement without the Operator's prior written consent (within no less than sixty (60) days prior to the anticipated completion date of such transfer), except that the Partner may assign this Agreement in full to a successor entity in the case of a merger or sale of substantially all assets, provided that (a) the successor is not a competitor of the Operator and agrees in writing to be bound by this Agreement, and (b) all required regulatory approvals (including approval from the licensing authority of the Autonomous Island of Anjouan, Union of Comoros for the change, if needed) are obtained. The Operator's teams and independent contractors shall participate in and facilitate the transfer process to ensure continuity of services and compliance with the terms of this Agreement. The Partner shall provide the Operator with a copy of the relevant sale or purchase agreement entered into between the transferring party and the acquiring party in respect of the Brand. The Operator shall not be responsible for, nor liable in respect of, any interruption, damage, or claims arising from a transfer effected without the Operator's prior awareness or participation. Following any approved transfer, the terms of this Agreement relating to the affected Brand may be renegotiated with the new owner, and the Operator reserves the right to modify the applicable services or to terminate this Agreement in respect of such Site. The Operator may assign this Agreement (in whole or part) to an affiliate or successor (for example, if the Operator reorganizes its corporate structure or transfers the contract to a similarly licensed affiliate), or to a third party in connection with a merger, acquisition, or sale of business, provided that the assignee agrees to

assume the Operator's obligations without approval of the Partner. The Operator shall notify the Partner of any such assignment. Any purported assignment in violation of this section is void. This Agreement will bind and inure to the benefit of the Parties' respective permitted successors and assigns.

12.4 Subcontracting: The Operator may subcontract portions of the Services to third-party service providers (for example, outsourcing parts of customer support, or using third-party KYC service, etc.), but the Operator shall remain responsible for the performance of Services by any subcontractors. The Operator will ensure any subcontractor is bound by confidentiality and compliance obligations consistent with this Agreement. The Partner may not subcontract or outsource any of its core obligations (such as marketing) in a way that breaches this Agreement or adds compliance risk, without notifying the Operator, except for using standard third-party marketing agencies or affiliates which the Partner remains responsible for.

12.5 Notices: All **notices or other communications** required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, or sent by registered mail, courier, or email (with confirmable receipt) to the addresses of the Parties set forth below (or to such other address as either Party may designate by notice to the other):

- If to the Operator: Address: Hamchacku, Mutsamudu, Autonomous Islands of Anjouan, Union of Comoros, Email: hello@momentumcorporate.com
- If to the Partner: **Address:** [Partner's address], **Email:** [Partner's notice email].
  Notices by email shall be followed by a written confirmation via courier or mail unless the receiving Party acknowledges receipt by return email. Notices shall be deemed received: if by hand or courier, on delivery; if by registered mail, on the fifth business day from posting; if by email, on the date the email is transmitted (provided no bounce or error is received) or the next business day if sent after business hours of recipient.

12.6 No Waiver: The failure of either Party to enforce any provision of this Agreement or to exercise any right or remedy shall not be construed as a present or future waiver of such provision, right, or remedy. An explicit waiver by a Party of any default or breach must be in writing and shall not constitute a waiver of any other or subsequent default or breach.

12.7 Severability: If any provision of this Agreement is held to be invalid, illegal, or unenforceable by a court or tribunal of competent jurisdiction, that provision shall be enforced to the maximum extent permissible to effect the intent of the Parties, and the remaining provisions of the Agreement shall remain in full force and effect. The Parties shall negotiate in good faith a valid, legal, and enforceable substitute provision that most nearly reflects the original intent and economic effect of the invalid provision.

12.8 Independent Legal Advice: Each Party acknowledges that it has had the opportunity to seek independent legal advice before signing this Agreement. This Agreement shall not be construed in favor of or against either Party by reason of authorship (no presumption against the drafter shall apply).

12.9 Counterparts & Electronic Signatures: This Agreement may be executed in **counterparts**, each of which will be deemed an original and all of which together shall constitute one instrument. Signatures transmitted by electronic means (facsimile, scanned PDF, e-signature services, etc.) shall be considered valid and binding as originals.

12.10 Further Assurances: Each Party agrees to execute and deliver such further documents, and to take all such further actions, as may be reasonably necessary to give full effect to the intent of this

Agreement and to ensure its enforceability and compliance with applicable laws (for example, to satisfy any particular filing or documentation requirement of a regulator).

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the date first written above:

Operator **Momentum Gaming Solutions Ltd** Signature:_____ Name: Comoros Management Ltd Title: Director	Partner **[Partner Company address]** Signature:_____ Name: _____ Title: _____

Schedule 1 – Service Level Agreement

Overview

This Service Level Agreement ("SLA") sets out the service standards and obligations governing the provision of services necessary for the operation and maintenance of the Platform system. It forms a supplement to, and is attached to, the white label agreement (the "Agreement") entered into between the parties.

This SLA shall take effect on the same date as the commencement of the Agreement and shall remain valid for the duration of the Agreement, regardless of the reason for its termination.

This SLA defines the scope, performance levels, and conditions applicable to all services provided under it, as agreed and acknowledged by both parties.

Definition and Purpose

The Operator shall provide the Partner with access to a proprietary online interface (the "**Dashboard**") as part of the Services. The Dashboard is a secure, web-based control panel that serves as the Partner's centralized management console for overseeing all aspects of the Brand's operations on the Platform.

Access and Permissions

The Operator shall create unique administrative user credentials for the Partner and its authorized personnel. The Partner shall be responsible for maintaining the confidentiality of login credentials and for all actions taken under its authorized accounts.

Features and Capabilities

Through the Dashboard, the Partner shall be able to:

- Monitor real-time and historical performance data, including:
    - Gross Gaming Revenue (GGR)
    - Net Gaming Revenue (NGR)
    - Player acquisition, activity, and retention metrics
    - Transaction summaries (deposits, withdrawals, payment method analytics)
- Configure and launch marketing campaigns, bonuses, and promotions (subject to predefined risk and compliance settings managed by the Operator)
- Access customer lifecycle tools, including CRM workflows and segmentation features
- View customer support statistics and ticket logs
- Review KYC and AML compliance status summaries (Note: full verification operations remain under the Operator's control)
- Generate and export detailed financial reports
- Receive system alerts, regulatory updates, and platform maintenance notices
- Commit to an optional full insurance of the Brand (losses coverage) -subject to a separate agreement

Limitations and Supervision

For clarity, within this clause, "misuse" includes without limitation attempts to bypass or disable KYC/AML controls, unauthorized access or tampering, automated scraping or load testing outside agreed scopes, and any action that degrades Platform integrity or availability; and "non-compliance" includes any breach of license conditions, AML/KYC policies, Responsible Gambling requirements, data protection rules, or the operational policies referenced in Section 5. In case of doubt, the Operator may act to preserve regulatory compliance and security.

For the purposes of this Clause:

- **"Misuse"** shall mean any use of the Dashboard that is fraudulent, abusive, unauthorized, or inconsistent with its intended operational purpose, including but not limited to attempts to circumvent security protocols, manipulation of data, or actions that could compromise system integrity.
- **"Non-compliance"** shall mean any failure to adhere to applicable laws, regulations, regulatory guidelines, contractual obligations, or internal policies set forth by Swift, including but not limited to breaches of anti-money laundering (AML), counter-terrorist financing (CTF), know-your-customer (KYC), or data protection requirements.
- **"Security threats"** shall mean any event, action, or vulnerability that may compromise the confidentiality, integrity, or availability of the Dashboard or related systems, including but not limited to cyberattacks, unauthorized access, malware, denial-of-service attempts, data breaches, or insider threats.

The Operator reserves the right to restrict or revoke specific Dashboard functionalities if misuse, non-compliance, or security threats are detected.

The Partner shall not, and shall not permit anyone to: (i) copy or republish the Services or Software, (ii) make the Services available to any person other than authorized users, (iii) use or access the Services to provide service bureau, time-sharing or other computer hosting services to third parties, (iv)modify or create derivative works based upon the Services or Documentation, (v) remove, modify or obscure any copyright, trademark or other proprietary notices contained in the software used to provide the Services or in the Documentation, (vi) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code of the Software used to provide the Services, except and only to the extent such activity is expressly permitted by applicable law, or (vii) access the Services or use the Documentation in order to build a similar product or competitive product. During the subsistence of this Agreement and on termination the Provider shall not lease, sell or license such End- user Database to third parties or otherwise commercially exploit such End-user Database for its own benefit save for the purposes of giving effect to this Agreement.

Support and Uptime

In accordance with the services set forth in this SLA, the Operator shall acknowledge and respond to all service-related incidents or requests submitted by the Partner within the response timeframes specified below:

Operational Impact	Definition and Priority	Target Response Time	Target Resolution Time

Blocker - examples include: ● **Complete system outage** ● **Key functionality is unavailable** ● **Data corruption or repeated data loss** ● **Frequent software failures causing major interruptions to service**	**Critical**	**1 hour**	**24 hours**
Major - examples include: ● **Up to a fifth of Users are unable to deposit funds or access gameplay** ● **Significant performance degradation affecting user experience**	**High**	**4 hours**	**48 hours**
Limited - examples include: ● **Software issues that restrict certain system operations, but workarounds exist and overall functionality is not critically affected** ● **A small number of games are inoperable** ● **Incorrect behavior that has a limited effect on overall casino operations**	**Medium**	**24 hours**	**5 working days**
Minor - examples include: ● **Cosmetic or visual errors** ● **Minor defects causing minimal or negligible disruption to service**	**Low**	**48 hours**	**Best effort or accordingly to release schedule**

The response times specified are indicative targets applicable during both Office Hours and After-Hours periods and will be pursued using the Operator's reasonable best efforts. Notwithstanding the foregoing, certain circumstances may arise that require an extension of the stated response times.

All support enquiries shall be managed in accordance with their assigned priority level, with higher-priority issues (including critical incidents) taking precedence over those of a lower priority. During the course of diagnosing and resolving an issue, the Operator may, at its discretion, reassess and adjust the assigned priority. The determination of resolution shall be made by the Operator's support personnel, and progress updates shall be recorded in the ticketing system for the Partner's visibility.

All Service Requests must be submitted through the Operator's designated Service Desk ticketing platform. Such requests shall be processed during the Operator's standard business hours, being Monday to Friday from 10:00 to 19:00 (CET), excluding public holidays.

Planned maintenance will be notified at least 48 hours in advance and scheduled outside peak hours whenever feasible.

The Operator shall ensure that the Dashboard is available, excluding scheduled maintenance or force majeure events. In the event of technical issues, the Partner may contact designated support for assistance, through the communication channels agreed on the Brand onboarding. The Operator may update the Dashboard's interface or underlying systems periodically to improve functionality, security, or compliance features. The Operator shall not be liable for infrastructure availability or downtime. Accordingly, no service credits or financial remedies shall apply in relation to infrastructure uptime.

Schedule 2: Prohibited Jurisdictions

Pursuant to Section 5.5 of the Agreement, the Brand shall not accept players from, or allow marketing targeting, the following jurisdictions (**"Prohibited Jurisdictions"**). This list may be updated by the Operator from time to time to remain compliant with law and the Operator's licensing obligations:

Australia, Austria, Comoros Islands, France, Germany, Netherlands, Spain, United Kingdom, USA, all FATF Blacklisted countries, including any other jurisdictions banned by Anjouan Offshore Financial Authority.

Schedule 3: Fees and Commercial Terms

1. Setup Fee: The Partner shall pay a one-time setup fee of **USD $19'999** to the Operator upon signing the Agreement (or according to the following schedule: $4'999 on signing, with $799 as a monthly subscription). This fee covers initial setup, integration, and launch costs.

2. Revenue Share: The Operator and the Partner will share the Gross Gaming Revenue (**GGR**) generated by the Brand. The Partner is responsible for the following deductible items:

- SMS promotional marketing.
- Bonuses and promotional credits redeemed by players.
- Payment processing fees (e.g., deposit/withdrawal transaction fees, chargebacks).
- Jackpot contributions (if a shared jackpot network is used).
- Fraudulent transactions or uncollectible debts.
- Insurance service (if applicable)

Unless otherwise specified, GGR is calculated monthly. The Revenue Share shall be allocated as follows: **[Operator 15% / Partner 85%]** of GGR.

The Operator will deduct its percentage and applicable costs from the Brand's gaming accounts and provide the remainder to Partner.

3. Minimum Monthly Fee (if applicable): N/A.

4. Payment of Revenue Share: By the end of each calendar month, the Operator shall generate and provide the Partner with a detailed revenue report, including:

- Gross Gaming Revenue (GGR)
- All applicable deductions (refunds, chargebacks, bonuses, payment processing fees, insurance service
- Net Gaming Revenue (NGR)
- Calculation of the revenue share attributable to each Party

The Partner shall have direct access to revenue balances via the Dashboard interface. All funds due to the Partner shall be transferred in accordance with the agreed payment terms, and such payments shall be executed by the Operator.

Float and Minimum Balance Requirement: The Partner will be required to provide a minimum balance equivalent of $10,000 (the "Float") to the Operator within three (3) days of request, regardless of whether the Partner has elected to subscribe to the Operator's optional Insurance Service. The Partner acknowledges and agrees that the Operator may apply the Float at its sole discretion for the purpose of processing payments and withdrawals requested by End Users, or as otherwise expressly instructed by the Partner. The Partner further agrees that the Float shall be maintained at a level sufficient to support the withdrawal limits specified in the Operator's terms and conditions in accordance with the End User withdrawal policy, and the Operator shall have the right to request additional top-ups if deemed necessary to meet operational requirements.

Notwithstanding the above, due to the nature of the business, there may be times when the Float is close to depletion. Where a liquidity shortfall may emerge in the near future, the Operator shall give ample advance warning to the Partner in order to enable the Partner to replenish the Float in a timely manner.

The Partner understands and accepts that during the period when the Float is depleted the Platform will automatically block access to making withdrawals to Players and to manually altering their balances.

For the avoidance of doubt, in case of any liquidity shortfall the Operator will not pay to Players from its own funds. All payments to Players shall be made from the Partner's funds.
After termination of this Agreement for whatsoever reason the Operator is obligated to return the current remaining amount of the Float to the Partner, less the amount of Player's winnings exceeding losses (if any), less the amount of any Partner's outstanding debts to the Operator (if any), within 15 (fifteen) business days after the date of termination. This clause shall survive termination of the Agreement.

If the Brand operates in multiple currencies, the conversion to USD or EUR for settlement purposes shall be calculated at the prevailing market rate on the last day of the month, or as otherwise mutually agreed.

Any applicable sales tax, VAT, or GST on the Operators's services shall be borne by the Partner and will be added on top of the Operator's share; or

5. Other Fees:

- **Payment Processing Fees:** The Operator will charge through any third-party payment provider fees at cost and shall apply an additional 1% administration fee for the processing of such payments.
- **Extra Services:** If the Partner opts for additional marketing services from the Operator beyond the included scope , such services and fees will be detailed in a separate addendum or work order. Similarly, if custom development is requested by the Partner beyond the standard platform features, the Operator will quote fees which must be agreed in writing.
- **Regulatory Fees:** If any new gaming taxes, duties, or mandatory contributions are introduced that apply to the Brand's revenue (and were not present or accounted for at the start of the Agreement), the Parties shall discuss in good faith an adjustment to the financial terms. Typically, such costs would be deducted before revenue share (treating them like an operating cost) or the revenue share percentages could be revisited to maintain economic balance.
- **Chargebacks and Fraud losses:** The financial liability for chargebacks or confirmed fraud is generally borne by the Partner as per Section 3.8 (Brand Insurance).
- **Legal and Financial Fees:** If the Partner requires legal, compliance, regulatory or financial services beyond the standard scope of this Agreement (including, without limitation, jurisdiction-specific advice, licensing support, remediation of regulatory findings, or financial management), such services and applicable fees shall be agreed and charged separately in writing in hourly based or any other rate agreed by the Parties.

6. Currency and Invoicing: All payments from the Partner to the Operator (e.g., any invoiced fees, one-off developments, revenue shares except setup fees) shall be made in **USD** (United States Dollars) unless another currency is specified. The Operator will invoice the Partner for any fixed fees or pass-through costs monthly. The Partner shall pay invoices within **15 days** of receipt. Late payments may incur interest at **1.5% per month** or the maximum rate permitted by law, whichever is lower. All fees and charges associated with payments between the parties shall be borne by the Partner.

7. Financial Reporting and Audits: The Partner has the right to request an audit of the relevant financial records of the Operator related to the Brand's revenue calculations, not more than once per year, and with at least 15 business days' notice. Such audit would be at Partner's expense unless a material discrepancy (greater than 5% error in revenue calculation against the Partner's favor) is discovered, in which case the Operator will bear the reasonable audit costs and promptly rectify the underpayment. The Operator keeps the right to similarly audit any of the Operator's records relevant to verifying that, for instance, marketing spend or other shared costs (if any) are as claimed.

(The Parties may adjust or fill in the above with the actual agreed numbers. This Schedule ensures transparency on how the Operator is compensated and how revenue is shared.)